

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Rolando Vasquez	Team: Squad #13	CCRB Case #: 201809227	☐ Force ☐ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Tuesday, 10/30/2018 10:10 PM	Location of Incident: Utica Avenue and Avenue I	18 Mo. SOL 12/15/2020	Precinct: 63
Date/Time CV Reported Mon, 11/05/2018 12:37 PM	CV Reported At: CCRB	How CV Reported: On-line website	Date/Time Received at CCRB Mon, 11/05/2018 12:37 PM

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. SGT John Sellitti	95	935721	063 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Stephan Noel	21068	963183	063 PCT
2. POM Michael Cioffi	24252	963217	063 PCT
3. POM Peter Rhatigan	29658	903205	063 PCT

Officer(s)	Allegation	Investigator Recommendation
A . SGT John Sellitti	Abuse: Sergeant John Sellitti threatened to arrest § 87(2)(b)	A . Unsubstantiated
B . SGT John Sellitti	Abuse: Sergeant John Sellitti searched the vehicle in which § 87(2)(b) was an occupant.	B . Substantiated

Case Summary

On November 5, 2018, § 87(2)(b) called the CCRB and filed this complaint.

On October 30, 2018, at about 10:10 p.m., § 87(2)(b) was driving in the vicinity of Utica Avenue and Avenue I in Brooklyn. § 87(2)(b) became involved in a vehicle accident with a police vehicle occupied by PO Stephan Noel and PO Michael Cioffi of the 63rd Precinct. The patrol supervisor, Sgt. John Sellitti, also of the 63rd Precinct, allegedly threatened to arrest § 87(2)(b) (Allegation A: Abuse of Authority, unsubstantiated). Officers acting under the supervision of Sgt. Sellitti, including PO Cioffi and PO Noel, searched § 87(2)(b)'s vehicle (Allegation B: Abuse of Authority, Substantiated).

There is no video evidence in this case.

§ 87(2)(b) received two summonses for § 87(2)(b)

. § 87(2)(a) 18 USC § 2721 (a)

Findings and Recommendations

Allegation (A) Abuse of Authority: Sergeant John Sellitti threatened to arrest § 87(2)(b).

It is undisputed that § 87(2)(b) was involved in a vehicle accident with a police vehicle driven by PO Noel and occupied by PO Cioffi. As a result of the collision with the police vehicle, § 87(2)(b)'s vehicle moved into a lane of oncoming traffic, collided with two civilian operated vehicles, and came to a stop on the sidewalk of the street.

§ 87(2)(b) testified that while driving through the intersection of Utica Avenue and Avenue I, her vehicle was struck from behind by a police vehicle (BR01). § 87(2)(b) denied being under the influence of any substance including alcohol and marijuana. PO Noel and PO Cioffi approached § 87(2)(b)'s vehicle and ordered her to provide her license and insurance information. While looking for her insurance card, Sgt. Sellitti approached § 87(2)(b)'s vehicle and ordered her to exit the vehicle. Sgt. Sellitti asked § 87(2)(b) various questions about how the vehicle accident occurred, such as which direction she was coming from, from which direction the police vehicle came, and how her vehicle was struck. § 87(2)(b) answered Sgt. Sellitti's questions calmly. Sgt. Sellitti interrupted § 87(2)(b) while she responded and she felt he was trying to intimidate her and manipulate her answers. § 87(2)(b) eventually said, "Well, I don't know how to answer your questions because every answer that I give you, you're telling me that it's not correct or that's not how it happened and interrupt." Sgt. Sellitti said, "Well then if you're not answering any questions, you're under arrest." Immediately thereafter, PO Noel placed a handcuff on § 87(2)(b)'s right hand. An unidentified officer intervened by telling PO Noel that there was no reason for § 87(2)(b) to be handcuffed and the handcuff was removed.

§ 87(2)(b) testified that her two sisters, § 87(2)(b) and § 87(2)(b) and husband, § 87(2)(b) arrived on scene. In addition, the Police Accident Report associated with this incident identified six occupants of the other vehicles involved in the vehicle accident (BR04). § 87(2)(b) provided a phone statement in which she stated that § 87(2)(b)'s vehicle collided with her vehicle, but that she did not witness § 87(2)(b)'s interactions with officers (BR05). The remaining witnesses were unavailable to the investigation (see IAs for contact attempts).

PO Cioffi testified that as they drove through the intersection, he and PO Noel were attempting to stop a vehicle (BR02). § 87(2)(b) ran a steady red light and her vehicle collided with the police vehicle. PO Cioffi and PO Noel requested a supervisor to the location.

PO Cioffi and Sgt. Sellitti, who subsequently arrived on scene, provided the following generally consistent testimony (BR02-03). § 87(2)(b) refused to answer questions about the accident. While speaking with § 87(2)(b) both officers observed her eyes were bloodshot and watery, and that her speech was slurred. § 87(2)(b) ultimately stated that she did not have to answer any questions and started to walk away. Because the officers suspected that § 87(2)(b) was under the influence of alcohol, because she refused to answer questions about the accident, and because she started to leave during the officers' investigation of the accident, § 87(2)(b) was handcuffed. As soon as § 87(2)(b) was handcuffed, she became cooperative with answering questions about the accident and as she spoke, the officers determined she did not smell of alcohol, so the handcuffs were removed immediately.

Sgt. Sellitti acknowledged ordering PO Noel to handcuff § 87(2)(b) because he believed she was under the influence of alcohol, because she refused to answer questions, and because she started to walk away. Sgt. Sellitti explained that he used to work in the Staten Island Intoxicated Driver Testing Unit and has experience detecting the symptoms of someone who is under the influence of alcohol. § 87(2)(b)'s bloodshot and watery eyes and slurred speech made Sgt. Sellitti suspect § 87(2)(b) was under the influence of alcohol.

PO Peter Rhatigan of the 63rd Precinct, Sgt. Sellitti's operator, testified that he was primarily involved in directing traffic at the scene of the accident (BR06). PO Rhatigan heard § 87(2)(b) and the officers arguing. PO Rhatigan separated § 87(2)(b) from the officers to diffuse the situation and spoke with her briefly about the accident by himself. PO Rhatigan did not see officers attempt to handcuff § 87(2)(b). PO Rhatigan never suspected § 87(2)(b) was intoxicated.

None of the officers interviewed recalled any officer intervening to stop § 87(2)(b) from being handcuffed.

According to the NYPD's Department Advocate's Office, PO Noel resigned as of May 10, 2019. Therefore, he could not be interviewed by the CCRB about this incident (BR07).

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§ 87(2)(g). Therefore, it is recommended that **Allegation A** be closed as **unsubstantiated**.

Allegation (B) Abuse of Authority: Sergeant John Sellitti searched the vehicle in which § 87(2)(b) was an occupant.

It is undisputed that the scene of the vehicle accident, which involved four vehicles and a response from several police vehicles, created vehicular traffic at the intersection. Sgt. Sellitti was the supervisor on scene during the accident. § 87(2)(g).

§ 87(2)(b) testified she was taken to an ambulance and was treated by EMTs after she was released from handcuffs. While in the ambulance, § 87(2)(b) asked family members, including her husband and two sisters, who had arrived on scene, to retrieve a Halloween costume

from her vehicle, § 87(2)(b) could not see her vehicle from where she was in the ambulance and did not witness her vehicle being searched. § 87(2)(b)'s family members returned to the ambulance and told § 87(2)(b) that officers were searching "every inch" of her vehicle. § 87(2)(b) did not know who or how many officers searched the vehicle. § 87(2)(b) was transported to § 87(2)(b) and her vehicle was towed to a repair shop. Aside from the Halloween costume, § 87(2)(b)'s vehicle contained shoes and some baby clothes.

PO Cioffi testified that he searched the vehicle to secure any valuables because the vehicle was inoperable and had to be towed. PO Cioffi searched the back seat and the reachable areas in the front seat of the cabin. PO Cioffi did not find any valuables and only found loose papers and other assorted items which he said did not have to be vouchered. PO Noel assisted PO Cioffi in searching the vehicle.

Sgt. Sellitti did not remember if § 87(2)(b)'s vehicle was searched, but said it likely was searched to secure valuables because several vehicles were towed from the location and officers would be required to do so in this instance. Sgt. Sellitti explained that any valuables in a vehicle need to be safeguarded to protect against lost property, either with the driver, if the driver is available, or vouchered with the police for safekeeping, before the vehicle can be towed.

A photo from the Police Accident Report shows § 87(2)(b)'s vehicle stopped on the sidewalk, perpendicular to the street, and blocking a lane of traffic (BR08). The photos show § 87(2)(b)'s front and rear bumpers were dislodged from the body of the vehicle.

A request to the IAB-CCRB Liaison unit returned negative results for any property vouchers associated with § 87(2)(b) the Police Accident Report, or her vehicle (BR15). PO Cioffi, PO Noel, and Sgt. Sellitti had memo book entries about this incident, but did not document the inventory search of § 87(2)(b)'s vehicle in their memo books (BR16).

Absent a criminal investigation, a vehicle may be impounded and towed when failure to do so would jeopardize public safety or impede the efficient movement of traffic and when the defendant is unable to provide for the vehicle's immediate and efficient removal. When police tow a vehicle, officers may conduct an inventory search of the vehicle to protect the driver's property, to protect the police against claims of missing property, and to protect the police from any danger. The search must be conducted in accordance with constitutionally proper procedures. People v. Iverson, 22 Misc. 3d 470 (2008) (BR09).

The police are not required to explore alternatives to impoundment. The reasonableness of any governmental activity does not invariably turn on the existence of alternative less intrusive means. People v. Walker, 267 A.D.2d 994 (1999) (BR10).

During an inventory search of a vehicle, any area of the vehicle which may contain valuables are to be searched. Any valuables found in the vehicle are to be removed and vouchered. Property of little value that is left inside the vehicle should, within reason, be listed in the officer's activity log. NYPD Patrol Guide, Procedure 218-13 (BR11).

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[Redacted] it is recommended that **Allegation B** be closed as **Substantiated**.

Civilian and Officer CCRB Histories

- This is the first complaint to which § 87(2)(b) [Redacted] is a party (BR12).
- Sgt. Sellitti has been a member of the service for 15 years and this is the first complaint to which he has been a subject.

Mediation, Civil and Criminal Histories

- This complaint was not suitable for mediation.
- According to the NYC Office of the Comptroller, a Notice of Claim was filed about this incident in which § 87(2)(b) [Redacted] has made a claim for \$20 million for personal injury and property damage as a result of the vehicle accident, deprivation of civil rights, lost earnings, and medical expenses. No 50-H hearing is scheduled (BR13).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)] [Redacted]
[Redacted].

Squad No.: _____

Investigator: _____
Signature _____ Print Title & Name _____ Date _____

Squad Leader: _____
Signature _____ Print Title & Name _____ Date _____

Reviewer: _____
Signature _____ Print Title & Name _____ Date _____